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PAKISTAN

As 1999 drew to a close, the government of Prime Minister Nawaz Sharif confronted mounting sectarian violence, a unified opposition demanding new elections, and escalating tension with the military. That tension, culminating in Sharif's dismissal of army chief General Pervez Musharraf, ultimately led to the country's fourth military coup on October 12.

By suppressing opposition-led demonstrations and strikes, curtailing civil liberties through repressive ordinances, and persecuting independent NGOs and journalists, Sharif's administration left civil society battered. Meanwhile, Sharif alienated important elements in the army with his abrupt withdrawal of support in July for Muslim militants who had occupied strategic peaks overlooking Kargil, in the Indian-held portion of Kashmir. The subsequent retreat of the militants, who had seized their positions with the backing of the Pakistani military, reduced the danger of Pakistan's diplomatic isolation but engendered widespread domestic condemnation and proved to be the final catalyst in prompting a military takeover.

Human Rights Developments

The most dramatic development during the year was the bloodless coup on October 12. Prime Minister Sharif dismissed General Parvez Musharraf as army chief, then tried to prevent the general's plane, en route from Sri Lanka, from landing in Karachi. Within hours, the military launched its counterattack, and by the end of the day, Sharif was under arrest and the entire cabinet was under guard.

Within days of the military takeover, the general suspended the constitution, abolished the national assembly and all provincial legislatures, announced the formation of a six-member national security council to give "guidance" to the Cabinet of Ministers, and banned the Supreme Court from challenging his authority. The general also promised to uphold freedom of the press and religious tolerance, to exercise nuclear restraint, withdraw some military forces from the Indian border, and to revive the country's battered economy while attacking high-level corruption. He said his was an interim government but gave no timetable for new elections. Reaction to the coup within the country was generally favorable.

The October coup capped a year of increasing discontent with the Sharif administration stemming from its crackdown on opposition political activity and increasing encroachments on civil liberties, with the courts providing only occasional relief. Leaders of Pakistan's normally fractious opposition announced on September 14 the formation of the Grand Democratic Alliance (GDA), grouping together nineteen political parties with the avowed aim of dislodging Sharif's government. The government responded with overt attempts to suppress opposition political activity. A GDA call for a protest rally in Karachi led to the arrest from September 24 to 26 of more than 1,000 opposition activists throughout the city, including much of the leadership of the Pakistan's People's Party, as well as senior leaders of the Muttahida Qaumi Movement (MQM), the Awami National Party, and the Pakistan Tehrik-e-Insaaf party. Most were released on bail on September 28, although magistrates rejected the bail applications of some senior figures, including Senators Nasreen Jalil and Aftab Sheikh of the MQM.

On February 17, in a landmark ruling, the Supreme Court declared that the military courts set up by the federal government in late 1998 to try civilians for political, sectarian and ethnic violence were unconstitutional, and ordered that cases pending in military courts be transferred to anti-terrorism courts or other courts established within the law. The federal government responded by amending the 1997 Anti-Terrorism Act so as to give anti-terrorism courts jurisdiction over the same categories of offenses as the military courts. In the amended act, the definition of terrorism was extended to include "acts of civil commotion," a term that included the "commencement or continuation of illegal strikes" as well as "distributing, publishing or pasting of a handbill or making graffiti or wall-chalking intended to create unrest or fear."

Seven anti-terrorism courts were established in Karachi in early May. One case was tried in apparent violation of Pakistan's constitutional guarantee against double jeopardy. Mohammad Saleem had been acquitted by a military appellate court on January 6 of involvement in the murder of three police officers, after the court failed to establish a motive or find substantial evidence linking him to the crime. However, police again arrested Saleem on May 13 and brought him before an anti-terrorism court to face a second trial on the same charges. On June 11, Saleem was convicted and sentenced to death. The court rejected Saleem's contention that he was below the age of sixteen—which under Sindh provincial law would have precluded capital punishment—after a court-ordered medical examination found him to be between the ages of twenty and twenty-one.

The government repeatedly failed to uphold the civil liberties of women or to punish "honor killings." In one particularly egregious case, Samia Sarwar was shot and killed in the Lahore office of the AGHS Legal Aid Cell on April 6 by a gunman who had apparently been hired by her family. A resident of Peshawar in the North-West Frontier Province (NWFP) and the daughter of Ghulam Sarwar Khan Mohmand, president of a local chamber of commerce and industry, Sarwar had traveled to Lahore the previous month to obtain a divorce, over her parents' objections. Although the First Information Report (FIR) included them in the list of the accused, neither Sarwar's father, mother, or uncle was arrested. And despite strong and credible evidence linking them to the murder, the investigation report submitted by the police concluded that there was no evidence of involvement by Sarwar's family.

On August 3, the Pakistani Senate voted to block debate over a draft resolution condemning incidents of violence against women. Only four members of the Senate voted in favor of discussing the draft, itself a substantial dilution of an earlier text that specifically condemned Sarwar's murder.

The government's intimidation of the news media emerged as an issue of international concern, as authorities targeted a leading independent newspaper group and several journalists who had collaborated with a BBC team producing a documentary about government corruption in Pakistan.

Najam Sethi, editor of the Friday Times, was arrested at his home in Lahore on May 8 and held without charge for nearly a month by Inter-Services Intelligence (ISI), a military intelligence agency. Government officials stated that Sethi was being held in connection with a speech he had delivered in New Delhi in April. The Friday Times claimed the real reason for his arrest was a series of editorials he had written about loan defaults by senior government officials and an interview that he gave the BBC team. The Lahore High Court dismissed a habeas corpus petition filed by Sethi's wife, Jugnoo Mohsin, ruling that it did not have the jurisdiction to "interfere in the affairs of the armed forces."

The government finally charged Sethi on June 1 with sedition, promoting communal enmity, condemning the creation of Pakistan and advocating the abolition of its sovereignty, and violating the Prevention of Anti-National Activities Act. The charges were withdrawn a day later, after the government failed to produce evidence before the Supreme Court justifying Sethi's detention and following condemnation of Sethi's detention by the international community. Although Sethi was released on June 2, authorities subsequently seized his passport and his wife's bank accounts. On June 24, Zafar Ali Shah, the parliamentary secretary for parliamentary affairs, filed a petition with the chief election commissioner seeking an inquiry into Sethi's religious status. Shah suggested that if Sethi were found to be a non-Muslim, he should lose his right to vote.

Two other journalists who had cooperated with the BBC team were also subjected to official harassment and intimidation. In April, M.A.K Lodhi, a journalist with the News International was briefly arrested and questioned about the nature and extent of his collaboration with the BBC team. On

May 4, Hussain Haqqani, an opposition leader and columnist for The Friday Times and the Urdu-language daily Jang, was arrested by Pakistan's Federal Investigation Agency under a two-year old corruption charge on which he had already been exonerated. However, his detention was also suspected to have been related to interviews he gave to the BBC. He was finally released on July 25, after allegedly being brutally tortured and interrogated.

During late 1998 and early 1999, the government persistently tried to prevent the Jang group of newspapers from publishing. The Karachi-based group includes Jang, Pakistan's largest circulation Urdu newspaper, and the News International, the country's second-largest English-language newspaper. The Federal Investigation Agency raided Jang's Rawalpindi bureau in mid-December 1998, the day after Jang published a story on a financial scandal involving the Ittefaq group of companies owned by Prime Minister Sharif's family. Prior to the December raid, the government had frozen the Jang group's bank accounts, placed deadlines upon it to pay large taxes, ceased government advertising, and withheld supplies of government-regulated newsprint. The government's harassment of Jang continued into early February.

Reports of torture and ill-treatment in prisons continued to surface, including a case of sexual abuse of a juvenile that highlighted the lack of impartial grievance mechanisms for prisoners. On April 11, a riot broke out in the juvenile ward of Sahiwal Central Prison in Punjab, after prison staff members beat a thirteen-year-old inmate for complaining of sexual abuse by the head warder. Several of the juvenile prisoners broke the wall of their prison cell and set fire to gallows and prison furniture. The riot was eventually suppressed by the Frontier Constabulary, resulting in injuries to nearly twenty children. A few days earlier, the Punjab prisons department had authorized a local legal-aid lawyer who had been informed of the sexual abuse, to visit the prison. However, the prison superintendent subsequently prevented the lawyer from meeting any of the juveniles. In the immediate aftermath of the uprising, the provincial prison department suspended the prison's assistant superintendent and two of the warders. Criminal cases were also registered against ten of the boys for rioting and damaging prison property.

Sectarian violence escalated in scale and geographic scope, as Shi'a Muslim leaders and communities came under attack not only in Punjab, where the attacks had previously been concentrated, but also in Karachi. In the immediate aftermath of an attack on October 1 at a mosque in Karachi that left nine worshipers dead, police detained Maulana Azam Tariq, head of the extremist Sunni Muslim party Sipah-i-Sahaba Pakistan. They also arrested about two dozen local leaders and activists of various religious parties in Hyderabad.

Defending Human Rights

The Punjab provincial government shut down nearly 2,000 NGOs, imposed restrictions on the registration of new groups, and began drafting a law that would facilitate its ability to regulate the province's remaining NGOs. A similar crackdown on NGO activities, albeit on a smaller scale, was underway in Sindh. Although local NGO activists noted that many of the banned organizations existed in name only, they said the move also targeted groups that had done critical reporting on human rights issues.

Punjab social welfare minister Pir Binyamin Rizvi stated at a press conference on December 26, 1998 that all NGOs working in Punjab would need clearance from provincial and federal intelligence agencies before they could be registered with the Social Welfare Department. All NGOs, he said, would have to submit a written pledge to the department that they were not involved in anti-state, anti-government, or anti-religion activities.

On May 10, the department revoked the registration of 1,941 NGOs, shutting down nearly one third of the 5,967 NGOs registered in the province. Stated reasons for the closures included, in some cases, failure to notify the government of an address change. Rizvi told Agence France-Presse that about 3,000 remaining NGOs in Punjab were "under scrutiny," and that the government suspected that some of them had engaged in anti-state activities as "agents of foreign countries." He said that NGOs would not be permitted to receive direct foreign aid, and that donors would be required to channel grants through the government.

All of the disbanded organizations were registered under the Voluntary Social Welfare Agencies (Registration and Control) Ordinance. However, several major NGOs, including the Human Rights Commission of Pakistan (HRCP), are registered under the Societies Act and are technically outside the jurisdiction of the Social Welfare Department. The Punjab government subsequently announced on May 18 that all NGOs in the province would henceforth be registered under the Social Welfare Ordinance. It also began drafting a law that would enable it to dissolve NGOs registered under the Societies Act and to seize their assets. As of October, however, government representatives and an NGO committee were engaged in a dialogue about the need for such a bill and its possible content.

Women's NGOs emerged as a special target of harassment, and Social Welfare Minister Rizvi was quoted by Dawn accusing the Applied Socio-Economic Research (ASR) Institute of Women's Studies of "brainwashing young women and making them pursue a course that clashed with government policies."

Although the crackdown on NGOs was centered in Punjab, similar campaigns were initiated in other provinces. On May 17, for example, the Sindh social welfare department announced that it had canceled the registration of 273 NGOs, out of a total of about 5,282 NGOs registered in the province, because of their alleged involvement in anti-state activities and corruption. The same month, the government of Sindh, on the directive of the federal government, initiated an inquiry into the alleged embezzlement by Shirkat Gah, a prominent women's rights NGO, of Rs. 80 million (U.S. \$1,543,657) of World Bank funds and its alleged involvement in anti-state activities. The World Bank has denied funding the organization.

Despite these repressive measures by the government, NGO activism continued. Groups such as HRCP, and others working on women's, environmental, and rural development issues, openly condemned the detention of Najam Sethi, the failure of Pakistan's Senate to condemn "honor killings" of women following Samia Sarwar's murder, and the efforts by provincial governments to deregister and otherwise restrict NGOs.

Role of the International Community

There was near universal condemnation of the October 12 coup, and major powers used the threat of continuing sanctions to bolster their demand for a quick return to civilian rule. The British Commonwealth suspended Pakistan's membership on October 18 because of the coup.

United Nations

In April, Radhika Coomaraswamy, the U.N. Special Rapporteur on Violence Against Women, expressed concern over the growing number of "honor crimes" in Pakistan, particularly the murder of Samia Sarwar. Coomaraswamy urged the government of Pakistan to seriously address the issue of honor killings and support crisis centers and shelters for women victims, adding that "the government of Pakistan should take all necessary steps to protect the lives of Asma Jehangir and her colleagues." In October, U.N. Secretary-General Kofi Annan condemned the ouster of the civilian government and urged General Musharraf to take early steps to "restore civilian rule and the constitutional process."

United States

The Clinton Administration expressed concern over the ballistic missile tests by India and Pakistan in April and the escalation of violence in Kashmir during the months of May and June. It also criticized the Pakistani government for the arrest of Najam Sethi, calling for his release and stating that the crackdown against Pakistani journalists was "unacceptable." The State Department called for the immediate release of Sethi and other journalists who had been detained by the government.

In September, during a meeting between Secretary of State Madeleine Albright and Pakistani Foreign Minister Sartaj Aziz, the U.S. expressed concern over the arrests of opposition leaders and activists in Karachi. In the aftermath of the coup, the State Department announced that it would cut off remaining economic assistance to the country, as required by U.S. law. Previous sanctions due to nuclear testing in 1998 had already reduced U.S. aid to less than \$5 million per year. Following General Musharraf's address to the nation, the U.S. seemed somewhat more optimistic about its relations with Pakistan. In

prepared testimony before Congress, Assistant Secretary of State for South Asian Affairs Karl Inderfurth praised the general's address to the nation in which he announced the withdrawal of troops from the Indian border and promised to return Pakistan to a "true" democracy, although the U.S. later expressed disappointment at the lack of a timetable for that return. On October 21, the administration said it intended to maintain sanctions imposed following Pakistan's nuclear tests-though it was lifting some sanctions on India-saying "there won't be business as usual with Pakistan until there is a prompt restoration of civilian and democratic rule."

European Union

The European Union (E.U.) expressed concern over the escalation of fighting in Kashmir, and issued a statement in which it called on both India and Pakistan to show maximum restraint and respect the Line of Control (LoC). It demanded the withdrawal of armed infiltrators from Kashmir, and urged India and Pakistan to resume diplomatic talks to resolve the dispute. The E.U. also postponed signing a trade and cooperation agreement with Pakistan four times: first, because of Pakistan's nuclear tests; second, because of the arrest of Najam Sethi; third, in the wake of the Kargil conflict; and finally, due to the October coup. The E.U. strongly condemned the coup and expressed deep concern about its implications for the South Asian region.

Japan

Japan suspended all new grant aid and new yen loans after Pakistan conducted its first underground nuclear tests in May 1998, following India's nuclear tests earlier that month. Exceptions were made for "aid of an emergency and humanitarian character and grant assistance for grassroots projects." Japan has urged Pakistan to sign the Nuclear Non-Proliferation Treaty and the Comprehensive Test Ban Treaty, and has sought greater transparency in Pakistan's nuclear programs. Japanese Prime Minister Keizo Obuchi also expressed grave public concern over the military takeover and did not respond to appeals from General Musharraf to Japan's ambassador in Islamabad to provide aid.

International Financial Institutions

Aid and trade sanctions imposed on Pakistan following the May 1998 nuclear tests sent the country into an economic tailspin, but the October coup virtually ensured the sanctions would stay in place. The International Monetary Fund had already delayed payment of a \$ 1.5 billion credit because of questions about Pakistan's economic policies, and following the coup suspended talks with the government. While ongoing World Bank projects continued and \$2.28 billion of a major loan program had already been disbursed, the bank said no new disbursements would be made and payment of another \$1.3 billion loan approved would likely be held up until democracy was restored. The Asian Development Bank, which did not extend new loans to Pakistan following the 1998 nuclear tests, stated that it would continue to monitor the situation to assess the impact of the coup on its operations in the country.

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